

HOUSE No. 5378

The Commonwealth of Massachusetts

PRESENTED BY:

Mark D. Sylvia and Kelly A. Dooner

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Marion to grant an additional license for the sale of all alcoholic beverages not to be drunk on the premises.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>4/14/2026</i>
<i>Kelly A. Dooner</i>	<i>Third Bristol and Plymouth</i>	<i>4/14/2026</i>

HOUSE No. 5378

By Representative Sylvia of Fairhaven and Senator Dooner, a joint petition (accompanied by bill, House, No. 5378) of Mark D. Sylvia and Kelly A. Dooner (by vote of the town) that the town of Marion be authorized to grant an additional license for the sale of all alcoholic beverages not to be drunk on the premises in said town. Consumer Protection and Professional Licensure. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Marion to grant an additional license for the sale of all alcoholic beverages not to be drunk on the premises.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 17 of chapter 138 of the General Laws, the
2 licensing authority of the town of Marion may grant an additional license for the sale of all
3 alcoholic beverages not to be drunk on the premises pursuant to section 15 of said chapter 138,
4 said license to be issued only to C & J Sull LLC, doing business as J. Sull Wine located at 119
5 Wareham road, unit 105, in the town of Marion. The license granted pursuant to this act shall be
6 subject to all of chapter 138, except said section 17, and all conditions imposed by the select
7 board of the town of Marion.

8 (b) The licensing authority of the town of Marion shall not approve the transfer of a
9 license granted under this section to any other location, but it may grant the license to a new
10 applicant at the same location if the applicant files with the licensing authority a letter from the
11 department of revenue and a letter from the department of unemployment assistance indicating

that the license is in good standing with those departments and that all applicable taxes, fees and contributions have been paid.

(c) If a licensee terminates or fails to renew a license granted under this section or any such license is cancelled, revoked or no longer in use, it shall be returned physically, with all of the legal rights, privileges and restrictions pertaining thereto, to the licensing authority of the town of Marion, which may, within 3 years after such return, grant the license to a new applicant at the same location and under the same conditions as specified in this section, otherwise such license shall dissolve.

(d) The license granted under this section shall be issued within 1 year of the effective date of this act; provided, however, that if the license is originally granted within that time period, it may be granted to a new applicant under subsections (b) and (c) thereafter.

SECTION 2. This act shall take effect upon its passage.